

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 16-16

MAVL CAPITAL, INC.,
IAM & AL GROUP INC., and MAXIM OSTROVSKIY,

Complainants,

– vs. –

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,

Respondents.

JOINT STATUS REPORT

The parties herein submit this Joint Status Report pursuant to the Presiding Officer’s Order Requiring Joint Status Report of October 30, 2020 (the “Order”), which required the parties to confer to discuss the next steps in this proceeding by November 20, 2020 and to file a Joint Status Report by December 2, 2020.

Pursuant to the Order, the parties were required to discuss if settlement of this claim is possible to avoid further litigation. To that end, complainants wrote to respondents on November 20, 2020 regarding settlement and still await a response from counsel for Marine Transport Logistics, Inc. Counsel for Mr. Alper has responded and settlement discussions are underway.

As to the directives in the Order on the issue of seeking any additional discovery, complainants wrote to respondents on November 20, 2020 and explained that complainants do require the following additional discovery which complainants intended to include in this Joint Status Report, together with the following explanations as to how the discovery would relate to an element of complainants’ Shipping Act claims. All of the following requests include a request for Native Electronic Copies of the MTL Invoices and email communications as they existed at

the time that MTL respondent generated them - - this request is for purposes of ensuring that MTL does not, as it has in the past, generated these documents for the first time now for the purposes of this litigation. Complainants' requests and position regarding the need for discovery, together with the respondents' responses from Mr. Pogil of November 25, 2020 and complainants' reply are set forth below:

1. The Lease Agreement for the storage lot where the subject Mercedes and Porsche were stored, which was in effect between January 1, 2013 through December 31, 2013 together with: a) the invoices provided to Marine Transport Logistics, Inc. ("MTL") by the owner of the storage lot for the rental of the lot and/or for storage of the Mercedes and Porsche; b) proof of MTL's payment of rent to the owner of the lot; and/or in place of proof of MTL's payment of rent to the owner of the lot, complainants require proof of MTL's payment of to the owner of the lot for storage of the Mercedes and Porsche.

- a. **Complainants' Position:** Complainants have alleged that the Mercedes and Porsche were misdelivered to Dubai and then unlawfully sold under the alleged pretense of MTL having asserted a maritime lien for ocean freight on an unrelated shipment in violation of the Shipping Act of 1984. Complainants explain that there exists an MTL House Bill of Lading for this shipment.

While the Commission has already established that MTL was acting in the capacity of NVOCC with regard to this shipment in its Memorandum and Order of October 29, 2020, MTL nevertheless maintains that there was no misdelivery and no unlawful maritime lien, but rather there existed a "warehouse lien" which allegedly entitled MTL to become the Beneficial Cargo owner of the cars and then export them overseas. Respondent Alper has agreed that at the very least, the cars were misdelivered to Dubai.¹ MTL has also alleged in the matter of *World Express & Connection, Inc. v. Crocus Investments, LLC et al.* (U.S.D.C. – D.N.J., 2:15-cv-08126-KM-MAH) that the storage lot where the cars were stored allegedly belonged to World Express and Connection Inc. ("WEC").

In the matter of *World Express, supra*, the undersigned counsel for defendants/third-party plaintiffs produced records from the Union County Prosecutor's Office, including Police Report from an investigation which revealed that the storage lot does indeed belong to MTL and that there is no evidence of a lot owned by WEC. In the matter of *World Express, supra*, WEC and MTL produced a copy of a lease agreement allegedly between Accem Warehouse Inc. and WEC for a term of five years beginning on January 1, 2008

¹ See, Complainants Status Report of December 19, 2018 filed in this matter on the docket as Document 45, page 12, and Appendix "D" thereto at p. 130/ln. 17-25; p. 131/ln. 1-6).

and ending on December 31, 2012 (see Document 180-12, Page ID: 3753 on the Court's Docket). The term of this lease was expired prior to the time that the Mercedes was allegedly stored in WEC's lot starting on January 11, 2013, where MTL allegedly stored the Mercedes through May 9, 2013 as well as the time when the Mercedes and Porsche were exported to Dubai on or about September 12, 2013 as set forth in the MTL House Bill of Lading for this shipment.

Since WEC claims to have billed MTL for storage of the Mercedes and Porsche, the production of a valid lease in effect during the relevant time period, together with the other requested documents go directly to the issues of who owned the storage lot where the cars were allegedly stored, who paid the rent for the lot or for storage of the vehicles and ultimately, if MTL actually asserted a warehouse lien over these cars or if they were misdelivered. In the absence of these documents, there was no warehouse lien, but rather an unlawful maritime lien or the cars were misdelivered. On this issue, we also note that on January 23, 2015 Alla Solovyeva answered interrogatories in the matter of MAVL, *supra*, where she offers testimony under oath regarding MTL having listed Car Express & Import Inc. as the U.S. Principal Party in Interest ("USPPI") in the Automated Export System (AES) Shipment Record filed by MTL with the U.S. Department of Commerce for the shipment of the subject Mercedes and Porsche. She explains, *inter alia* as follows: "The USPPI for the 2006 Mercedes SL65 and 2011 Porsche Panamera was listed as Car Express and Import Inc...". In her prior responses to interrogatories directed to MTL, dated December 12, 2014, she explains that the Mercedes and Porsche "...were exported to Dubai, UAE for sale by Car Express & Import Inc. pursuant to Clause 15 of the MTL House Bill of Lading ["LIEN"] for unpaid freight and other charges owed by plaintiffs..." and that the Mercedes "...was sold pursuant to Clause 15 of the MTL House Bill of Lading ["LIEN"] for unpaid freight and other charges owed by plaintiffs...". She additionally explains that "[a]uthorization for the export of the vehicles was given by plaintiffs orally and in writing via e-mail..." according to defendant Aleksandr Solovyev (the owner of Car Express), and she further explains that with regard to the process by which MTL asserts a maritime lien, that "MTL provides notice of the outstanding charges owed by the shipper via e-mail and then the lien materializes pursuant to Clause 15 of the MTL House Bill of Lading ["LIEN"] upon non-payment of freight and other charges owed by plaintiffs. The foregoing begs the question as to why MTL would accept instructions from Car Express and Aleksandr Solovyev to ship the cars to Dubai, when they were still owned by complainants herein, and whether this was done pursuant to an alleged "warehouse lien" or maritime lien.

The ALJ's Order Requiring Joint Status Report of October 30, 2020 is clear, and the requested documents go towards establishing complainants' 46 U.S.C. 41102(c) claim on the issues of whether or not respondents' complained of practices or regulations relate to or are connected with receiving, handling, storing, or delivering property; whether the practice or regulation is unjust or unreasonable; and, whether the practice or regulation is the proximate cause of the claimed loss.

- b. **Respondents' Position:** The first sentence is false: the Complainants have not alleged that the Mercedes and Porsche were misdelivered to Dubai and then unlawfully sold... Rather, their sworn complaint —under penalties of perjury — at paragraph 31 alleges first a conversion and then shipment: “The respondents unlawfully converted this vehicle and shipped it to the United Arab Emirates...”

The following response is applied by MTL to all of Complainants' points below:

None of the additional discovery sought would tend to establish the essential element of 46. U.S.C §41101(c) under the Commission's interpretation of such rule: specifically, whether MTL engaged in 'practice' of a complained conduct: As the Commission stated in the case that it relied on when the new interpretation was issued: *Stockton Elevators*: “The essence of practice is uniformity. It is something habitually performed and it implies continuity...the usual course of conduct.”

This concept of “continuity” was already litigated in Federal Court, involving the same Complainants and property (1:13cv07110), when the Complainants here made allegations under the “RICO” statute as to the same property, namely the subject Mercedes & Porsche, that issue was resolved in MTL's favor and upheld on appeal (Docket No. 18-1197), therefore, it is being submitted that collateral estoppel applies in preventing relitigating the same issue in a different forum.

Collateral estoppel ‘applies when (1) the issues in both proceedings are identical, (2) the issue in the prior proceeding was actually litigated and actually decided, (3) there was[a] full and fair opportunity to litigate in the prior proceedings, and (4) the issue previously litigated was necessary to support a valid and final judgment on the merits.” *Epperson v. Entertainment Express, Inc.*, 242 F.3d 100, 108 (2d Cir. 2001).

It is being submitted that all of the above have been met with respect to the concept of “continuity”, which appears to be the same concept that is needed to prove in order to prevail under the Shipping Act when alleging a Section 41101(c) violation, under the final interpretive rule.

In the Order that was appealed in Federal Court by the Complainants here, the Court in *Mavl* stated: “Even under Plaintiff’s proposed re-pleading of the RICO claim, the entire scheme of which plaintiffs and the proposed new plaintiffs complain begins and ends with the misappropriation or withholding of certain property between 2009 and 2016, with the primary conduct as alleged taking place between January 2013 and August 2014.” (ECF #82).

Everything referenced in the current proceeding, relates to the same vehicles, part of an isolated transaction, where there are no pending or future contracts for repair, sale or shipping, and where the element of ‘continuity’ of conduct was already litigated in the matter the Complainants filed in Federal Court for the Eastern District of New York and the Second Circuit Court of Appeals, as stated above.

Even when counsel for Complainants tried to bring in another Plaintiff (Mr. Safanov) in the federal litigation, the Court said: “Even charitably construed, the ‘new evidence’ from Safanov permits Plaintiff to allege a few more predicate acts, some based on the same Mercedes transaction between MAVL and Defendants in 2013...” (ECF #82).

It is also noteworthy that the Court there went on to say: “Second, with respect to the ‘new evidence’ regarding Safanov’s dealings with Defendants, Plaintiffs also cannot demonstrate that this evidence could not have been discovered in time with reasonable diligence.”

It is being submitted that Complainants cannot now engage in any additional discovery on the issue that found its way through Federal Court and Court of Appeals with a favorable outcome in the favor of MTL, involving the same property and no evidence of “continuity” of the complained conduct.

- c. **Complainants’ Reply:** In the first instance, there is nothing “false” about complainants having alleged that the Mercedes and Porsche were misdelivered to Dubai and this is stated clearly in the Complaint and throughout the docket in this matter.² Further, to the extent that respondents refer to 46. U.S.C §41101(c), complainants respectfully submit that this was not the directives of the Presiding Officer in the Order of October 30 2020. Further, in the matter of *MAVL Capital Inc. et al. v. Marine Transport Logistics Inc. et al.* (U.S.D.C. – E.D.N.Y. Docket No.: 1:13-cv-07110-SLT-RLM), it was MTL’s position, as stated in a sworn response to interrogatories by Alla Solovyeva on behalf of MTL that with

² See, Complaint at pp. 8-9, paragraph V(c) (alleging that respondents violated 46 U.S.C. 41102(c) by “...misdelivering, and converting Complainants’ automobiles in order to sell them overseas for a profit...”); Complainants’ Response of October 3, 2016 to the Commission’s Order to Show Cause Why the Complaint Should not be Partially Dismissed (Document 9) at p. 9 (explaining that the Mercedes was misdelivered and then subsequently sold in Dubai); Complainants’ Exceptions to the Initial Decision Partially Dismissing Complaint (Document 20, dated February 8, 2017) at pp. 1, 21-25 (discussing misdelivery of the Mercedes).

respect to the export of the Mercedes and Porsche from the United States to Dubai, that MTL followed the shipping instructions provided to MTL from Car Express & Import Inc. (“Car Express”). In the matter at bar before the Commission, it is MTL’s position that MTL exercised a “warehouse lien” prior to the export of the cars, and that it did not exercise a maritime lien against said cargo for monies unrelated to the shipment of the cars in violation of 46 U.S.C. 41102(c). This begs the ultimate question as to the basis on which MTL accepted instructions from Car Express in order to make Car Express the exporter of the cars.

If MTL is now willing to admit that it did not exercise a warehouse lien over the cars, then the aforementioned request for a copy of the Lease Agreement will not be required.

2. The five (5) MTL Itemized Invoices for storage of the Mercedes allegedly issued by MTL and allegedly provided to Maxim Ostrovskiy and which are identified in the Court’s Docket in the matter of *MAVL Capital Inc. et al. v. Marine Transport Logistics Inc. et al.* (U.S.D.C. – E.D.N.Y. Docket No.: 1:13-cv-07110-SLT-RLM) in Document 12, Page ID: 181-183. This entry on the Court’s Docket contains an email dated May 9, 2013 with an attached MTL “Open Invoices” List, identifying MTL Invoice Nos.: 18091, 19098, 20622, 23343, 23344, and 24261, together with a copy of final invoice No.: 24261 in the amount of \$150.00. In addition to the five (5) MTL Itemized Invoice Nos.: 18091, 19098, 20622, 23343 and 23344 complainants require proof that these invoices were actually provided to complainants.

- a. **Complainants’ Position:** As set forth repeatedly in the Court’s record in the matter of *MAVL*, *supra*, plaintiffs therein assert that they never received any of the five (5) storage invoices set forth in the MTL “Open Invoices” List attached to MTL’s May 9, 2013 email, and that they only received the final invoice 24261 on May 9, 2013, together with the MTL “Open Invoices” List.

As can be seen on MTL Invoice 24261 (which would also be noted on the remaining five invoices listed on the MTL “Open Invoices” List) all monies allegedly due to MTL for storage of the subject Mercedes “...must be received no later than 10 business days after sailing date”. This completely begs the question as to whether or not MTL’s theory of having a “warehouse lien” over the cars holds any water.

Since complainants assert: a) that they never received the invoices except for MTL Invoice 24261 on May 9, 2013; b) that there was no warehouse lien; and c) that the cars were misdelivered, the requested documents go towards establishing complainants’ 46 U.S.C. 41102(c) claim on the issues of whether or not respondents’ complained of practices or regulations relate to or are connected with receiving, handling, storing, or delivering property; whether the practice or regulation is unjust or unreasonable; and, whether the practice or regulation is the proximate cause of the claimed loss.

- b. **Respondents' Position:** See MTL's response to #1 above.
 - c. **Complainants' Reply:** See complainants' reply to #1 above.
- 3. All documents, emails, writings, notes, receipts, correspondence and the like identifying, indicating, or otherwise demonstrating the manner in which MTL issued and provided any MTL Itemized Invoices for warehouse storage to complainants for storage of the Porsche.
 - a. **Complainants' Position:** Complainants assert: a) that MTL never issued MTL Itemized Invoices for warehouse storage; b) that there existed no warehouse lien; and c) that MTL could not be the Beneficial Cargo Owner for the Porsche. Complainants also assert that the Porsche was at the very least misdelivered. The requested documents go towards establishing complainants' 46 U.S.C. 41102(c) claim on the issues of whether or not respondents' complained of practices or regulations relate to or are connected with receiving, handling, storing, or delivering property; whether the practice or regulation is unjust or unreasonable; and, whether the practice or regulation is the proximate cause of the claimed loss.
 - b. **Respondents' Position:** See MTL's response to #1 above.
 - c. **Complainants' Reply:** See complainants' reply to #1 above.
- 4. A copy of MTL's Service Contract No.: 644011, together with MTL's Verified Answer to the following Interrogatory: Was MTL acting as a Beneficial Cargo Owner or NVOCC with regard to the shipment of the subject automobiles to Dubai.
 - a. **Complainants' Position:** In the matter of World Express, *supra*, defendants/third-party plaintiffs, which are represented by the undersigned, served a Subpoena for a Deposition upon Written Questions upon the ocean liner known 'Maersk' which transported the subject Mercedes and Porsche from the United States to Dubai at the direction and request of MTL. Said Subpoena sought to ascertain the capacity in which MTL shipped said vehicles to Dubai pursuant to MTL's service contract with Maersk. The Service Contract at issue requires that MTL certify to Maersk that it was either acting in the capacity of Beneficial Cargo Owner ("BCO") or as NVOCC with respect to all cargo shipped pursuant to the service contract. In the matter of World Express, *supra*, the Court granted MTL's request for a Protective Order and quashed the subpoena, finding it not relevant to defendants/third-party plaintiffs' allegations of fraud against MTL.

In the matter of World Express, *supra*, the undersigned's clients have alleged that Solovyev and MTL made fraudulent representations that they were the owners of the subject Mercedes and Porsche in order to induce the undersigned's clients to accept the subject cars for delivery in Dubai; to perform custom clearance of cars; and to store and repair them. That action is an action for fraud and civil conspiracy against MTL and Solovyev where it is additionally alleged that they created false documents such as auto auction invoices, and bills of lading in order to perpetuate the fraudulent representation that they owned said cars.

The distinction here is that this information is indeed relevant and material to the Commission's forthcoming decision in this matter in that it may cut against any argument by MTL that it had asserted a warehouse lien on said cars prior to their shipment from the United States to Dubai and that it had allegedly owned the cars (by conversion or otherwise) at the time of shipment, and consequently, that it was allegedly not acting as an NVOCC with regard to this shipment.

The issues raised regarding this request have also been fully briefed to the Presiding Officer in complainants' Status Report of June 21, 2017 (Document 31 in FMC Docket 16-16) at pp. 2-5.

In this matter, the existence of the Service Contract, as well as MTL's certification in the Service Contract on the issue of whether it was acting in the capacity of BCO or as NVOCC with respect to all cargo shipped pursuant to the Service Contract, are both relevant factors that the ALJ will take under consideration in deciding the issues of MTL's alleged defense of having asserted a warehouse lien versus complainants' allegation that MTL misdelivered the cars. (See, e.g. Initial Decision in the matter of Igor Ovchinnikov et al. v. Michael Hitrinov et al., FMC Docket No.: 15-11, dated March 9, 2017 at p. 29, FF# 3) explaining that this information, together with other facts was sufficient for the Presiding Officer to find that:

“...it is not appropriate to issue an initial decision on the pleadings finding that Empire did not operate as an NVOCC on the shipments of the cars claimed by Complainants.” *Id.* at pp. 50-51.

Again, since MTL maintains that there was no misdelivery of the cars and that it had asserted a warehouse lien, the requested documents go towards establishing complainants' 46 U.S.C. 41102(c) claim on the issues of whether or not respondents' complained of practices or regulations relate to or are connected with receiving, handling, storing, or delivering property; whether the practice or regulation is unjust or unreasonable; and, whether the practice or regulation is the proximate cause of the claimed loss.

Absent respondents' consent to this request, complainants request that the ALJ grant complainants permission to provide the ALJ with a proposed Subpoena to the Ocean Liner Maersk so that complainants may obtain the requested information.

B. Respondents' Position: See MTL's response to #1 above. Additionally, this interrogatory calls for a legal conclusion on the issue that was actually litigated and decided in Federal Court.

C. Complainants' Reply: See complainants' reply to #1 above.

5. All documents, emails, writings, notes, receipts, correspondence and the like identifying, indicating, or otherwise demonstrating the manner in which Car Express & Import Inc. became listed the exporter and U.S. Principal Party in Interest ("USPPI") of the Mercedes as set forth in the Shipper's Export Declaration which was filed electronically by MTL with the United States Department of Commerce through the online Automated Export System known as "AES".

- a. **Complainants' Position:** During the course of discovery in the matters of MAVL, *supra* and World Express, *supra*, a printout from the AES online system was produced which contains an AES ITN No.: X20130821010350. That AES ITN number was generated as a result of the AES filing and is the very same AES ITN number listed on the Ocean Liner Bill of Lading for the Ocean Liner which shipped the cars. The AES printout also lists Car Express & Import Inc. as the exporter and USPPI for that shipment.

As set forth above, in this matter the parties are in dispute as to the nature of MTL's role regarding this shipment (vis-à-vis NVOCC or BCO), whether MTL had allegedly asserted a warehouse lien or if the cars were misdelivered, and whether MTL had unlawfully asserted a maritime lien for shipments unrelated to this cargo. All of these issues are intertwined with the question of how Car Express & Import Inc. allegedly assumed ownership of the cars or was otherwise able to be listed as exporter and USPPI for that shipment in the AES printout and on what basis Car Express & Import Inc. was able to provide shipping instructions to MTL in order export the Mercedes.

Additionally, in MTL's Verified Amended Response to Plaintiff's Interrogatories to MTL in the matter of MAVL, *supra*, dated January 23, 2015, Alla Solovyeva explained as follows:

"The USPPI for the 2006 Mercedes SL65 AND 2011 Porsche Panamera was listed as Car Express & Import Inc..." (See, plaintiffs' FRCP Rule 26 document production at page Bates No.: DEF0228)

Additionally, on September 6, 2017, the undersigned counsel filed a Status Report in this matter which explained as follows:

“In the matter of *World Express*, *supra*, the undersigned’s clients have alleged that Solovyev and MTL made fraudulent representations that they were the owners of the subject Mercedes and Porsche in order to induce the undersigned’s clients to accept the subject cars for delivery in Dubai; to perform custom clearance of cars; and to store and repair them. That action is an action for fraud and civil conspiracy against MTL and Solovyev where it is additionally alleged that they created false documents such as invoices and bills of lading in order to perpetuate the fraudulent representation that they owned said cars.

The aforementioned false and fraudulent documents include invoices bearing the letterhead of the auto auction warehouse known as ‘Copart’ (and which were backdated to the time of the MTL House Bill of Lading pursuant to which the subject cars were shipped). As the Commission is aware, complainants herein maintain that the Porsche and Mercedes were owned by them at the time that the respondents herein confiscated said vehicles - - at no time were said vehicles ever part of Copart’s inventory nor were they ever purchased from Copart.

After the undersigned began to suspect that respondents were creating false invoices for use in this and other litigations, a subpoena was issued to Copart who has now confirmed that the two Copart invoices provided by respondents herein to the undersigned’s clients in the matter of *World Express*, *supra*, are indeed fake and are not part of Copart’s business records.”

Since it is respondents’ assertion that they asserted a warehouse lien and lawfully exported the cars to Dubai, that assertion is directly contradicted by the fact that in the matter of *World Express*, *supra*, there is evidence indicating that respondents purported to have purchased the cars from the auto auction known as “Copart” pursuant to invoices which are now demonstrated to have been faked and which are not part of Copart’s business records.

It cannot be disputed that this pattern of theft of cargo, fraud, lies, creation of false documents is indeed relevant to complainants’ 46 U.S.C. 41102(c) claim on the issues of whether or not the claimed acts or omissions of MTL are occurring on a normal, customary, and continuous basis; whether respondents’ complained of practices or regulations relate to or are connected with receiving, handling, storing, or delivering property; whether the practice or regulation is unjust or unreasonable; and, whether the practice or regulation is the proximate cause of the claimed loss.

- b. **Respondents' Position:** See MTL's response to #1 above. Additionally, Car Express & Import, Inc. is not a party in this matter, and as such, any request addressed to the Car Express entity should go the route of non-party discovery if such is permitted in this case.
- c. **Complainants' Reply:** See complainants' reply to #1 above. Additionally, the request is not directed to Car Express, but rather to MTL in that MTL is now being asked to explain why it would accept instructions from Car Express and Aleksandr Solovyev to ship the cars to Dubai, when they were still owned by complainants herein, and whether this was done pursuant to an alleged "warehouse lien" or maritime lien.

In closing, since respondents have not agreed to produce the requested discovery, it appears that the Presiding Officer's approval of the discovery will be necessary, as set forth in the Order. The Presiding Officer's Order nevertheless directs that the parties should agree on a proposed schedule for: a) any additional discovery requested; b) filing of Complainants' Remand Brief; c) filing of Respondents' Remand Opposition Brief; and d) filing of Complainant's Remand Reply Brief.

Since it is respondents' position to deny these requests absent judicial intervention, complainants request that the Presiding Officer "So-Order" the following schedule for discovery and remand briefs:³

All discovery approved by the Presiding Officer to be produced within 14 days⁴ of the issuance of an Order approving the discovery sought;

Complainants' Remand Brief to be filed within 45 days of the issuance of an Order approving the discovery sought;

Respondents' Remand Opposition Brief to be filed within 45 days of the filing of Complainants' Remand Brief;

Complainant's Remand Reply Brief to be filed within 45 days of the filing of Respondents' Remand Opposition Brief.

³ We add here that if MTL is now willing to admit that it did not exercise a warehouse lien over the cars, then the aforementioned request for a copy of the Lease Agreement will not be required.

⁴ The documents sought from MTL are readily available to it and MTL simply need "press the button" in order to email the requested documents to counsel.

With regard to the foregoing, respondent Dimitry Alper continues to assert that he should not be in this litigation as he was merely an employee of MTL and not involved in any of the wrongdoing alleged.” As stated above, and with respect to Mr. Alper, the parties have started discussion on the issue of settlement.

All of the foregoing is respectfully submitted as a ‘change in status’ of this case, so as to inform the Commission.

As always, complainants thank the Commission for its many continuing courtesies and considerations in this case.

Dated: December 2, 2020
Brooklyn, New York

Respectfully Submitted,

/s Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **JOINT STATUS REPORT** upon Respondents' Counsel at the following address:

by email to: PeterCipparulo@cipplaw.com, and garry.pogil@gmail.com.

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Dated: Brooklyn, New York
December 2, 2020